

Tentative Rulings for August 31, 2026

Department 1

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2602288	SOUSA vs APEX SITE SOLUTIONS, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Appearances requested to discuss the substantive unconscionability issue.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2402801	MACIAS vs D.R. HORTON LOS ANGELES HOLDING COMPANY, INC.	PLAINTIFF'S MOTION FOR EVIDENTIARY AND ISSUE SANCTIONS AGAINST DEFENDANT FOR SPOILIATION OF EVIDENCE

Tentative Ruling: A party has a duty to preserve evidence. Failure to preserve evidence for another party's use in pending or future litigation is a serious form of discovery abuse. *Victor Valley Union High School Dist. v. Superior Court* (2023) 91 Cal.App.5th 1121, 1139. Sections can include an evidentiary inference that the evidence that was destroyed or rendered unavailable was unfavorable to the party that did not preserve it. Sanctions can include issue sanctions or precluding the *Cedars-Sinai Medical Center v. Superior Court* (1998) 18 Cal.4th 1, 8, 11-12. offending party from supporting or opposing designated claims or defenses. It appears undisputed that certain evidence was not preserved. Appearances requested.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404634	CORNEJO VS. BEAUMONT MANOR, LLC	STIPULATION TO APPROVE PAGA SETTLEMENT

Tentative Ruling: Appearances requested to confirm that this settlement includes the individual claims originally made in the related action, CVRI2403435. Need to select date for review of administrator's report (order, ¶ 12).